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Small Claim Form for Informal Adjudication
and Information Checklist

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OFFICE OF THE SECRETARY
FEDERAL MARITIME COMMISSION

Federal Maritime Commission, Washington, DC.

Informal Docket No. 1946(1)

Smartstone Private Limited, # 218, Bommasandra, KIADB Industrial Area, 3rd Phase,
Anekal Taluk, Bangalore-560099, India, Phone No: + 91 9845200159 E-mail Id-
smartstone@vsnl.net

(Claimant)

vs.

General Noli USA Inc., 148-08 Guy R. Brewer Blvd, Jamaica, 11434, New York, U.S.A.
Phone No. +1-718 995 9233, Fax No. +1-718 995 8970, E- mail Id-
gnolineyork@generalnoli.com

(Respondent No. 1)

and

Savino Del Bene Freight Forwarders (India) Pvt Ltd, No 409, 1st Floor, Savera Apartments,
5th Cross, 1st Stage, 3rd Block, HBR Layout, Bangalore - 560043, India, Phone No. +91 80
4344 1000, Fax No. +91 80 4344 1004, E-mail Id- dhilliswara.rao@savinodelbene.com
and kishore.kotte@savinodelbene.com Agents of Respondent No. 1 General Noli USA Inc
and part of Savino Del Bene USA, 1905 South Mt. Prospect Road Unit D, 60018-1806 Des
Plaines, Phone No +1 847 390 3600, Fax No: +1 847 635 6257

(Respondent No. 2)

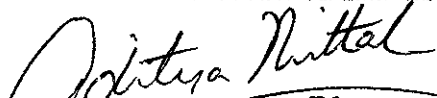
I. The Claimant is a private limited company incorporated under Companies ACT 1956
in Bangalore, Karnataka, India having principle place of Business at # 218,
Bommasandra, KIADB Industrial Area, 3rd Phase, Anekal Taluk, Bangalore-560099,
India and is engaged in manufacturing Granite Slabs and exporting Granite and Marble
Slabs to United States of America since 2005.

II. Respondent Details

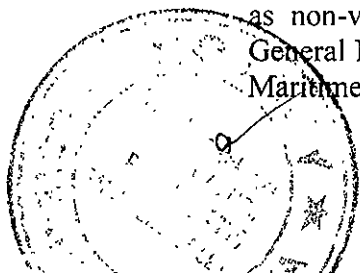
A The Respondent No. 1 named above is a Company incorporated in U.S.A. having
principle place of Business at 148-08 Guy R. Brewer Blvd, Jamaica 11434, New York,
U.S.A. and is engaged in providing services as non-vessel-operating common carrier
(NVOCC) licensed by Federal Maritime Commission FMC Organization No. #
18143NF.

B. The Respondent No. 2 named above is a Company incorporated in India having
principle place of Business at No 409, 1st Floor, Savera Apartments, 5th Cross, 1st Stage,
3rd Block, HBR Layout, Bangalore - 560043, India and is engaged in providing services
as non-vessel-operating common carrier (NVOCC) as Agents of Respondent No. 1
General Noli USA Inc in India. It is a part of Savino Del Bene USA licensed by Federal
Maritime Commission FMC Organization No. # 18653NF.

For SMARTSTONE PRIVATE LIMITED



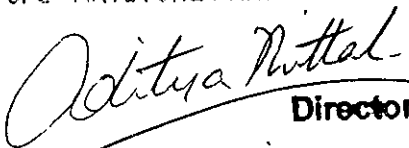
949, 60
U.S. 306/14

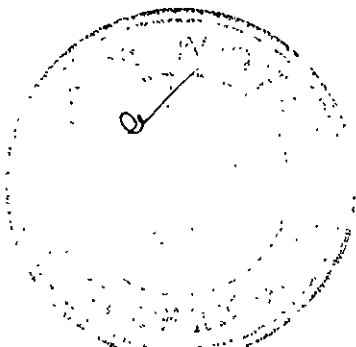


III. The matters that gave rise to the claim:-

- A. The Respondent No.1 General Noli USA Inc. Inc is engaged in transportation by water as non-vessel-operating common carrier (NVOCC) licensed by Federal Maritime Commission FMC Organization No. 18143NF and is under jurisdiction of Federal Maritime Commission as per Shipping Act 1984.
- B. The Respondent No.2 Savino Del Bene India is also engaged in transportation by water as non-vessel-operating common carrier (NVOCC) as Agents of Respondent No. 1 General Noli U.S.A. Inc. in India. It is a part of Savino Del Bene USA licensed by Federal Maritime Commission FMC Organization No. . # 18653NF and is under jurisdiction of Federal Maritime Commission as per Shipping Act 1984.
- C. The Claimant Smartstone Private Limited dispatched one 20 Ft. Container No. MSKU395899-7 containing Random Polished Granite Slabs through Respondent No 1 and 2 from Bangalore to Houston U.S.A. The Buyer to whom the material was sent was Expo Granite Marble Llc, USA.
- D. Respondent no 1 had been appointed as the Nominated forwarder by the Buyer. Respondent no 2 is the agent on behalf of Respondent no 1 in India.
- E. The value of the Shipment was USD 22191.07. The Payment Terms were 90 day from Bill of Lading date on Documents Against Acceptance through Bank.
- F. The Respondent No.2 issued To Order Negotiable Multimodal Transport Bill of Lading No. A712005108 dated 16.01.2012 as agent of Respondent no 1 General Noli U.S.A. Inc after the shipment was made.
- G. All original export documents for this container were forwarded to the Buyer's Bank by the Claimant Banker State Bank of India with specific instructions that the documents are to be released to the Buyer only after the Buyer accepts the documents for payment of invoice amount of USD 22191.07 at 90 days from the Bill of Lading date.
- H. The buyer did not accept the documents nor did he collect the original documents from their Bank. The Original set of documents including the 3 original Bill of Ladings were returned back to our Bank by the Buyers Bank. We presently have with us all the 3 original negotiable Bill of Ladings.
- I. In spite of the Buyer not submitting the Original Bill of Lading to Respondent No1 they facilitated delivery of the cargo to the Buyer without collecting original bill of lading against all International Laws, business norms and ethics while our bill remained unpaid. Final amount unpaid as of date is USD 22191.07 and suitable interest from 16.04.2012 (due date for payment of invoice) till date of payment.
- J. Respondent no 1 and 2 are responsible for this payment not received by us along with suitable interest on this amount from the due date till the date of payment.
- K. In spite of contacting Respondent 1 and 2 several times to date this amount has not been paid to us.

For SMARTSTONE PRIVATE LIMITED


Director



V. Section of statute claimed to have been violated.

Respondent 1 and 2 have violated sections 10(d)(1), 10(d)(4) of the Shipping Act if 1984 (Shipping Act), 46 U.S.C. §§ 41102(c), 41106(2) respectively regarding their handling of one shipment with one Bill of Lading by delivering the cargo to the buyer without collecting the Original Bill of Lading.

VI. State how Claimant was injured and amount of damages requested.

Respondent No. 1 and 2 delivered the cargo to the Buyer without collecting the Original Bill of Lading from them. As a result the Buyer has till date not paid us the invoice amount of USD 22191.07. Now the final unpaid amount is USD 22191.07 and suitable interest on this amount from the due date till the date of payment of the amount to us.

VII. The undersigned authorizes the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in subpart S (46 CFR 502.301-502.305) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission review.

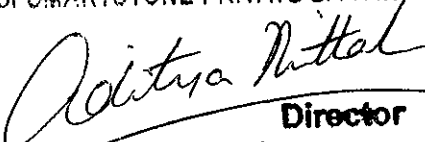
Memorandum or brief in support of claim :-

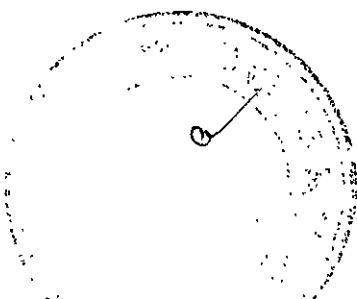
Please find copies of the following:

1. Bill of Lading No. A712005108 DATED 16.01.2012
2. Invoice No. SSPL/8154/2011-2012 dated 03.01.2012 for USD 22191.07
3. Packing List No. SSPL/8154/2011-2012 dated 03.01.2012
4. Insurance Policy no. 67030221110100000309 dated 03.01.2012 issued by The New India Assurance Co. Ltd.
5. Bill of Exchange no. 405 dated 16.01.2012 for USD 22191.07.
6. Fumigation Certificate no. 2082/2011-2012 dated 06.01.2012 of Central Warehousing Corporation.
7. Copy of collection letter dated 25.01.2012 sent by our Bankers State Bank of India to the Buyers Bank.
8. Copy of Return Advise dated 28.06.2012 received by our Bankers from JP Morgan Chase Bank, Buyers Bank for return of documents.
9. Copy of Return Advise dated 02.07.2012 received by us from State Bank of India, our Bankers for return of documents.
10. Copy of confirmation of delivery of the container to the Buyer on 28th Feb 2012 as per E-mail dated 20.05.2014 received from Savino Del Bene and General Noli.
11. Copy of our letter dated 30.05.2014 sent to Savino Del Bene Freight Forwarders (India) Pvt. Ltd. Bangalore and track result of Indian Post as confirmation of delivery for the same.
12. Copy of our E-mail dated 18.07.2014 sent to Savino Del Bene Freight Forwarders (India) Pvt. Ltd. Bangalore

(Date) 30th JULY 2014

For SMARTSTONE PRIVATE LIMITED


Director



For SMARTSTONE PRIVATE LIMITED

(Claimant's signature) _____

Aaditya Mittal
Director

(Claimant's address)

SMARTSTONE PVT LTD,
PLOT NO 218, KIADB INDUSTRIAL AREA, BOMASSANDRA 3RD
PHASE, ANEKAL TALUK, BANGALORE - 560099, KARNATAKA,
INDIA.

Email id: smartstone@vsnl.net

(Signature of agent or attorney) _____

(Agent's or attorney's address) _____

VERIFICATION

State of KARNATKA, Country of INDIA, ss: _____, being first duly sworn on oath deposes and says that he is The Claimant as DIRECTOR and is the person who signed the foregoing claim, that he has read the foregoing and that the facts set forth without qualification are true and that the facts stated therein upon information received from others, affiant believes to be true.

For SMARTSTONE PRIVATE LIMITED

Aaditya Mittal
Director

Subscribe and sworn to before me, a notary public in and for the States of KARNATAKA, Country of INDIA, this Thirtieth day of July 2014. (Seal)



Chanchala Lakshmi
CHANCHALA LAKSHMI 30/7/14

(Notary Public)

Do not sign this document without the presence of the Notary Public.

27/7/14 Near Court...

JUL 2014



General Noli USA Inc.

International Freight Forwarders

International Freight Forwarders
General Noli USA Inc.
148-08 Guy R. Brewer Blvd Jamaica
11434 New York
Ph. +1 718 995 9233
Fax. +1 718 995 8970
E-mail:

HOUSE BILL OF LADING

ORIGINAL

Shipper: SMART STONE PVT LTD., 218 BOMMASANDRA KIADB INDL AREA 3RD PHASE, ANEKAL TALUK ,BANGALORE-560099 INDIA Contact Tel +91 80 27835367 Fax +91 80		Bill of Lading No.: A712005108 FIRST ORIGINAL FMC #: 18143NF	
Consignee: TO ORDER Contact Tel Fax		File Ref.: Q20006 Issued At: HBR Layout, Bangalore 560043	
Notify: EXPO GRANITE MARBLE LLC, 1055 W SAM HOUSTON PARKWAY, SUITE 100 HOUSTON, TX 77043, - U.S.A. Contact Tel Fax		For Delivery apply to: GENERAL NOLI USA - NEW YORK 148-08 Guy R. Brewer Blvd JAMAICA, NY 11413 NY 11413 NY, U.S.A Contact Tel + 17189959233 Fax +1 7189958970	
Insurance covered by us: Yes No X			
Vessel & Voyage: MAERSK DARTFORD 1202 Port of Discharge: HOUSTON		Port of Loading: CHENNAI Place of Delivery: HOUSTON, TX-USA Shipped on Board Date: 16/01/2012 Place of Receipt: ICD-BANGALORE Pre Carriage: BY RAIL	
MARKS AND NUMBERS SHIPPERS LOAD AND STOW 01 - 07 + 01 BOX	CTNR # MSKU395899/7 20-DR FCL TYPE 20-DR FCL SEAL 0329228 PKGS 8	DESCR. OF GOODS 1X20' GP CONTAINER STC RANDOM POLISHED GRANITE SLABS TOTAL 07 WOODEN CRATES & 01 CARDBOARD BOX KASHMIR GOLD -2 CMS STD 42 SLABS--2814.38 SFT MADURA GOLD -2 CMS 33 SLABS--1816.26 SFT TOTAL 75 SLABS -- 4630.64 SFT SAMPLES 4"X4" ASSORTED COLOURS 50 NOS MADE OUT OF WASTE PACKED IN ONE CARDBOARD BOX INV NO:SSPL/8154/2011-12 DT:03.01.2012	GWK 19500.000 CBMS

See attached sheet ...

TOTAL #

8 CRATES

19500.000 KGS

FREIGHT RATES, CHARGES WEIGHTS SUBJECT TO CORRECTION		FREIGHT COLLECT	
TOTAL CHARGES TO BE COLLECTED		Received by carrier for shipment by ocean vessel between port of loading and port of discharge, and for arrangement or procurement of pre-carriage from place of receipt and on-carriage to place of delivery, where stated above, the goods as specified above in apparent good order and condition unless otherwise stated. The goods to be delivered at the above mentioned port of discharge or place of delivery, whichever is applicable, subject always to the exceptions, limitations, conditions and liberties set out on the reverse side hereof, to which the Shipper and/or consignee agrees to acceptation this document. IN WITNESS WHEREOF three (3) original documents have been signed, not otherwise stated above, one of which being accomplished the others shall be void. DATED AT: HBR Layout Bangalore 560043 ON: 16/01/2012 ISSUED BY: SAVINO DEL BENE FREIGHT FORWARDERS (INDIA) PVT.LTD	
		Declared value: Read clause concerning extra freight and carrier's limitation of liability on the reverse side hereof.	



General Noli USA Inc.

International Freight Forwarders

International Freight Forwarders
General Noli USA Inc.
148-08 Guy R. Brewer Blvd Jamaica
11434 New York
Ph. + 1 718 995 9233
Fax. +1 718 995 8970
E-mail:

ATTACHED SHEET #1

TO DOCUMENT Number: A712005108

Our Ref:Q20006

Container list:

MARKS AND NUMBERS	CTNR #	TYPE	SEAL	Pkgs	DESCR. OF GOODS	GWK	CBMS
					SB NO:6976425 DT:04.01.2012 LBC NO:0701008122 TOTAL:75 SLABS & 50 SAMPLES NET WT:10500.00 KGS		

[Handwritten signature]

INVOICE

Exporter: SMARTSTONE PVT. LTD. Address: # 218, Bommasandra, RIADB Industrial Area, 3rd Phase, Anekal Taluk, Bangalore - 560 099 Phone No: +91 80 27835367 / 27835368 Fax No.: +91 80 27835147 Email : smartstone@vsnl.net Website: www.smartstoneindia.net			Invoice No.: SSPL/8154/2011-12 Date : 03.01.2012		Exporter's Ref : IEC 0701008121									
BUYER: EXPO GRANITE MARBLE LLC. 1055, W. SAM HOUSTON PARKWAY, SUITE 100, HOUSTON, TEXAS 77043 UNITED STATES OF AMERICA.			DETAILS OF OUR BANK: STATE BANK OF INDIA, N.S. ROAD BRANCH, GILLANDER HOUSE, GROUND FLOOR, 8, N.S. ROAD, KOLKATA - 700 001, WEST BENGAL, INDIA. ACCOUNT NO: 10945134651											
			BUYER'S BANK: CHASE BANK, 546 WEST 19TH STREET, HOUSTON, TX 77008, UNITED STATES OF AMERICA KIND ATTN: AHMAD ELKHATIB											
			Country of Origin of goods: REPUBLIC OF INDIA		Country of Final Destination: USA									
Pre Carriage By: RAIL			Place of Receipt by Pre Carrier: ICD BANGALORE		Terms of Delivery & Payment: F.O.B. (C&I) COST & INSURANCE FROM FACTORY TO WAREHOUSE PAYMENT AT 90 DAYS FROM B/L DATE THROUGH BANK									
Vessel/Flight No.:			Port of Loading: CHENNAI		BUYER'S ORDER NO. : SS 01 DATED : 27.12.2011									
Port of Discharge: HOUSTON			Final Destination: HOUSTON, USA											
SL. NO.	DESCRIPTION OF GOODS	NO. OF CRATLS	NO. OF SLABS	QUANTITY (SQ. FT.)	RATE (USD/ SFT)	AMOUNT (USD)								
1	RANDOM POLISHED GRANITE SLABS KASHMIR GOLD - 2 CMS STD	4	42	2814.38	4.40	12383.27								
2	RANDOM POLISHED GRANITE SLABS MADURA GOLD - 2 CMS	3	33	1816.26	5.40	9807.80								
3	SAMPLES - 4" X 4" ASSORTED COLOURS - 50 NOS MADE OUT OF WASTE PACKED IN ONE CARDBOARD BOX	1	NIL	NIL	NIL	NIL								
TOTAL		8	75	4630.64		22191.07								
AMOUNT CHARGEABLE IN WORDS USD TWENTY TWO THOUSAND ONE HUNDRED NINETY ONE AND SEVEN CENTS ONLY.														
<table border="1"> <tr> <td>CONTAINER NO. :</td> <td>MSKI 395899-7</td> </tr> <tr> <td>CONTAINER TYPE:</td> <td>20' DRY</td> </tr> <tr> <td>OTLU NO.:</td> <td>MH-4N 0329228</td> </tr> <tr> <td>TRUCK NO:</td> <td>KA01-AA-6191</td> </tr> </table>							CONTAINER NO. :	MSKI 395899-7	CONTAINER TYPE:	20' DRY	OTLU NO.:	MH-4N 0329228	TRUCK NO:	KA01-AA-6191
CONTAINER NO. :	MSKI 395899-7													
CONTAINER TYPE:	20' DRY													
OTLU NO.:	MH-4N 0329228													
TRUCK NO:	KA01-AA-6191													
DECLARATION: We declare that this invoice shows the actual price of the goods described and that all particulars are true and correct.				Signature's For SMARTSTONE PVT. LTD. 										

PACKING LIST

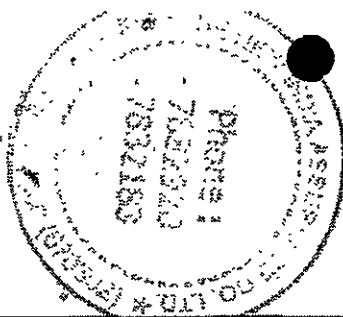
EXPORTER : SMARTSTONE PRIVATE LIMITED Plot 218, KIADB Industrial Area Bommasandra 3rd Phase Anekal Taluk Bangalore - 560099, India Phone : 91 80 27835387 Fax : 91 80 27835147 Email : smartstone@vsnl.net		Invoice No. SSPL/8154/2011-12 Dated 03.01.2012 Buyer's Order No.: SS 01 Dated : 27.12.2011 Other References : Country of Origin of Goods : REPUBLIC OF INDIA Country of Final Destination : USA		Exporter's Ref: IEC 0701008121 Our Proforma: Dated:	
BUYER EXPO GRANITE MARBLE LLC, 1055, W. SAM HOUSTON PARKWAY, SUITE 100, HOUSTON, TEXAS 77043, UNITED STATES OF AMERICA.		BUYER'S BANK CHASE BANK, 546 WEST 19TH STREET, HOUSTON, TX 77008, UNITED STATES OF AMERICA KIND ATTN: AHMAD ELKHATIB			
Pre-carriage by RAIL		Place of Receipt by Pre-carrier ICD BANGALORE		TERMS OF DELIVERY AND PAYMENT: FOB (C&I) COST AND INSURANCE FROM WAREHOUSE TO PARTY-WAREHOUSE	
Vessel / Flight No.		Port of Loading CHENNAI		PAYMENT: AT 90 DAYS FROM B/L DATE THROUGH BANK	
Port of Discharge HOUSTON		Final Destination HOUSTON, USA		OUR BANKERS: STATE BANK OF INDIA, N.S. ROAD BRANCH, GILLANDER HOUSE, GROUND FLOOR, 8, NS ROAD, KOLKATA 700 001	
Marks & Nos./ Container No.		No. & Kind of Package		Description of Goods	
				Quantity In Sft.	
				Remarks	
RANDOM POLISHED GRANITE SLABS KASHMIR GOLD - 2 CMS STD					
SL NO.	SLAB NO.	CRATE NO.	LENGTH CMS	HEIGHT CMS	
1	SS/KG/S/01	1	341	198	72.68
2	SS/KG/S/02		337	198	71.82
3	SS/KG/S/03		339	198	72.25
4	SS/KG/S/04		338	198	72.04
5	SS/KG/S/05		342	198	72.89
6	SS/KG/S/06		342	198	72.89
7	SS/KG/S/07		341	198	72.68
8	SS/KG/S/08		328	198	69.91
9	SS/KG/S/09		341	198	72.68
10	SS/KG/S/10		341	183	67.17
11	SS/KG/S/11	2	334	198	71.18
12	SS/KG/S/12		323	198	68.84
13	SS/KG/S/13		341	198	72.68
14	SS/KG/S/14		338	198	72.04
15	SS/KG/S/15		342	198	72.89
16	SS/KG/S/16		339	197	71.89
17	SS/KG/S/17		338	190	69.13
18	SS/KG/S/18		275	190	56.24
19	SS/KG/S/19		341	181	66.44
20	SS/KG/S/20		340	185	67.71
21	SS/KG/S/21	3	340	178	65.14
22	SS/KG/S/22		340	179	65.51
23	SS/KG/S/23		335	185	66.71
24	SS/KG/S/24		342	180	66.26
25	SS/KG/S/25		341	180	66.07
26	SS/KG/S/26		342	183	67.37
27	SS/KG/S/27		341	186	68.27
28	SS/KG/S/28		338	188	68.40
29	SS/KG/S/29		312	180	60.45
30	SS/KG/S/30		293	188	59.29
31	SS/KG/S/31		332	182	65.04
PAGE TOTAL					2124.54
SIGNATURE & DATE FOR SMARTSTONE PRIVATE LIMITED For SMARTSTONE PVT LTD AUTHORIZED SIGNATORY (R K MITTAL) C.E.O					

Marks & Nos./ Container No.	No. & Kind of Package	Description of Goods	Quantity In Sft.	Remarks
RANDOM POLISHED GRANITE SLABS				
KASHMIR GOLD - 2 CMS STD				
SL.NO.	SLAB NO.	CRATE NO.	LENGTH CMS	HEIGHT CMS
32	SS/KG/S/32	4	276	180
33	SS/KG/S/33		277	169
34	SS/KG/S/34		331	173
35	SS/KG/S/35		342	185
36	SS/KG/S/36		328	187
37	SS/KG/S/37		320	198
38	SS/KG/S/38		306	198
39	SS/KG/S/39		330	196
40	SS/KG/S/40		312	197
41	SS/KG/S/41		284	198
42	SS/KG/S/42		317	186
				ITEM TOTAL
				2814.38

Marks & Nos./ Container No.	No. & Kind of Package	Description of Goods	Quantity In Sft.	Remarks
RANDOM POLISHED GRANITE SLABS				
MADURA GOLD - 2 CMS				
SL.NO.	SLAB NO.	CRATE NO.	LENGTH CMS	HEIGHT CMS
43	SS/MG/01	5	279	179
44	SS/MG/02		290	172
45	SS/MG/03		291	179
46	SS/MG/04		291	178
47	SS/MG/05		291	178
48	SS/MG/06		285	181
49	SS/MG/07		286	180
50	SS/MG/08		283	180
51	SS/MG/09		283	180
52	SS/MG/10		284	178
53	SS/MG/11		285	180
54	SS/MG/12	6	290	178
55	SS/MG/13		291	172
56	SS/MG/14		287	178
57	SS/MG/15		284	181
58	SS/MG/16		285	185
59	SS/MG/17		291	178
60	SS/MG/18		284	180
61	SS/MG/19		292	177
62	SS/MG/20		278	178
63	SS/MG/21		293	178
64	SS/MG/22		289	175
65	SS/MG/23	7	291	175
66	SS/MG/24		289	175
67	SS/MG/25		286	180
68	SS/MG/26		290	174
69	SS/MG/27		289	179
70	SS/MG/28		283	180
71	SS/MG/29		290	174
72	SS/MG/30		290	178
73	SS/MG/31		285	185
74	SS/MG/32		283	180
75	SS/MG/33		278	178
				ITEM TOTAL
				1816.26
				PAGE TOTAL
				2506.10
				GRAND TOTAL
				4830.64

SAMPLES 4" X 4" ASSORTED COLOURS - 50 NOS MADE OUT OF WASTE PACKED IN 1 CARDBOARD BOX

SIGNATURE & DATE
FOR SMARTSTONE PRIVATE LIMITED
FOR SMARTSTONE PVT LTD
Raj
AUTHORISED SIGNATORY (R K MITTAL)
C.E.O



THE NEW INDIA ASSURANCE CO. LTD.
(Wholly owned by the Govt. of India)

MARINE CARGO SPECIFIC VOYAGE POLICY

Customer ID	: PO06084023		
Insured's Details		Issuing Office Details	
Insured Name	: M/SMART STONE PVT LTD(PO06084023)	Office Code	: BOMMASANDRA BRANCH (670302)
Address	: #218, KIADB INDSL AREA, ANEKAL TQ, BANGALORE BANGALORE, KARNATAKA, 560100	Address	: KIADB COMPLEX, 1ST FLOOR, HOSUR MAIN ROAD, BOMMASANDRA,
Phone No.	:	Phone No	: 7832183
E-mail/Fax	: /	E-mail/Fax	: / 7832920
PAN No	:	S.Tax Regn. No	: AAACN4165CST178

Policy Details			
Policy Number	: 67030221110100000309	Business Source Code	
Period of Insurance	: From:03/01/2012 02:27:42 PM	Dev.Off./Broker	: MR. R VENUGOPAL (107821769)
Date of Proposal	: 03-Jan-12	Agent/Bancassurance	: S B REKHA (1D7816446)
Prev. Policy no.	: NA	Phone No	: 9901409792 / NA
Client Type	: Non-Corporate	E-mail/Fax	: /

Financier(s) Details	
Sl. No.	Name of the Financiers

Premium:	Service Tax:	Stamp Duty	Total (Rs.)	Rupees (in words)	Receipt No. & Date:
As Agreed	As Agreed	As Agreed	As Agreed	As Agreed	67030281110000009 122 - 03/01/12

Co-Insurance Details				
Incoming/Outgoing	Company	Office Code	% of Share	Premium Share (Rs.)
N/A	NEW INDIA ASSURANCE CO. LTD.	N/A	100	As Agreed

WHEREAS the ASSURED named in the schedule hereto have represented to THE NEW INDIA ASSURANCE COMPANY LIMITED (hereinafter called "company") that they are interested in or duly authorized to make the insurance mentioned and have paid or agreed to pay the premium hereinafter stated. THE COMPANY HEREBY PROMISES AND AGREES with the Assured, their Executors, Administrators and Assigns that the company will insure against loss damage liability or expenses subject to Clause, Endorsement, Conditions and Warranties contained in the schedule.

Sum Insured(Rs)	: 1318150	Sum Insured in Foreign Currency	: NA
Duty Sum Insured(Rs)	: 0	Increased Value Sum Insured(Rs)	: 0
RR/LR/BL/AWB	: Bill of Lading(BL)	Date	: NA
Bill Number	: NA	Marks and nos	: NA
Basis of Valuation + % Extra	: CF + 10	Reg.Post/Courier	: Not Applicable
Date of Sailing	: NA	Transit Type	: Sea Export
Invoice No	: 8154	Invoice Date	: 03/01/2012
Days of Storage	: NA	Place of Storage	: NA
Excess	: 5 % of Claim Subject to minimum of Rs.8000	Vessel Name	: To be Advised

Journey From	Journey To	Transport Mode
M/S SMARTSTONE PVT. LTD.KIADB INDL AREA BANGALORE	HOUSTAN TEXAS,USA	Vessel/Rail/Road

Sr No	Packaging Description	Commodity Description
-------	-----------------------	-----------------------



THE NEW INDIA ASSURANCE CO. LTD.
(Wholly owned by the Govt. of India)

1	PROFESSIONALLY AND SECURELY PACKED- TRANSITWORTHY.	ON CONSIGNMENT SAID TO CONTAIN RANDOM POLISHED GRANITE SLABS KASHMIR GOLD -2CMS MADURA GOLD 2 CM, CM,STD/SAMPLES 4"x4"ASSORTED COLORS 100 NOS MADE OF WASTE PACKED IN ONE CARDBOARD BOXES PER INV. NO. SSPL/8154/2011-12 DATED 03.01.2012
Sr No.	RISK COVERED	
1	WAR&SRCC	
2	ICC-A	
Terms of Insurance		As per the following clauses written hereunder, current on date of sailing or dispatch and/or otherwise stated and attached hereto.
Conditions		Institute Cargo Clauses (A)
Conditions		Institute War Clauses (Cargo) & Institute Strike Clauses (Cargo)
Special Condition		: WARRENTED THAT CONSIGNMENT H AS NOT LEFT AT THE TIME OF TAKING POLICY

Subject to ISM Code Endorsement as attached

SURVEY AND CLAIMS SETTLEMENT:

In the event of loss or damage which may result in a claim under this Insurance immediate notice must be given to :

Address : W K WEBSTER & CO , (SA00000020)
WALSINGHAM HOUSE, SEETHING LANE , LONDON EC3N 4DL
UNITED KINGDOM,

Tel : 4402083007744, 4402082697581, 4407715003651
Fax : 4402083091266
Email : KWright@wkwebster.com, cosman@wkwebster.com

Claim Payable By:

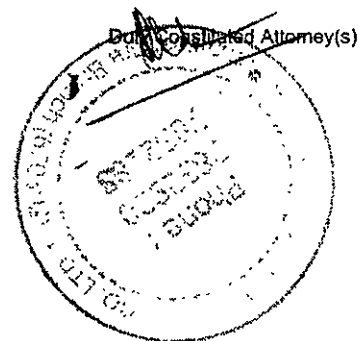
In the event of loss or damage which may result in a claim under this Insurance immediate notice must be given to:

Address : W K WEBSTER & CO , (SA00000020)
WALSINGHAM HOUSE, SEETHING LANE , LONDON EC3N 4DL
UNITED KINGDOM,

Tel : 4402083007744, 4402082697581, 4407715003651
Fax : 4402083091266
Email : KWright@wkwebster.com, cosman@wkwebster.com

In witness whereof the undersigned being duly authorised by the Insurers and on behalf of the Insurers has (have) hereunder set his (their) hand(s) on this 03rd day of JANUARY ,2012.

For and on behalf of
The New India Assurance Company Limited



Policy No. : 67030221110100000309 Document generated by 13396 at null.

Regd. & Head Office, New India Assurance Bldg., 87 M.G Road, Fort, Mumbai - 400 001. TOLL FREE No. 1 800 209 1415.

For redressal of your grievance, if any, you may approach any one of the following offices- 1. Policy issuing office 2. Regional office 3. Head office. In case, you are not satisfied with our own grievance redressal mechanism; you may also approach Insurance Ombudsman. For details of our office addresses and addresses of office of Insurance Ombudsman, please visit our website <http://newindia.co.in>.



THE NEW INDIA ASSURANCE CO. LTD.
(Wholly owned by the Govt. of India)

ADJUSTMENT VOUCHER

Issuing Office : BOMMASANDRA BRANCH (670302)
Address : KIADB COMPLEX, 1ST FLOOR, HOSUR MAIN ROAD, BOMMASANDRA,

BOMMASANDRA INDUSTRIAL ESTATE

Phone : 7832183

Email :

Fax : 7832920

Collection Number : 67030281110000009122

Collection Date : 03/01/2012

Business Source Code : 1D7821769

Received with thanks from M/SSMART STONE PVT LTD a sum of Rs 1748.00, RUPEES ONE THOUSAND SEVEN HUNDRED FORTY-EIGHT ONLY.

The amount received/Adjusted is towards -

Policy No.	A/C Description	Amount (Rs.)	A/C Code	Sub A/C Code
67030221110100000309	Cash Deposit Account-670302	1748.00	5076.670302	CD0000098025

Total = 1748.00

Stamp Duty = 1

Your Payment/Adjustment Details are as under -

Mode	Amount (Rs.)	Cheque No.	Cheque Date	Drawee Bank	Drawee Branch	Reference No.	Scroll/B G/APD Balance
Advance Premium Deposit	1748.00	N.A.	N.A.	N.A.	N.A.	6703021110011874	9280.00

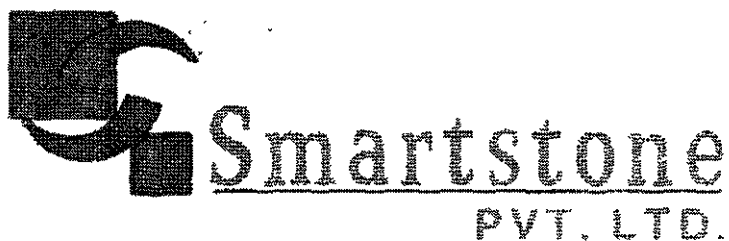
Total = 1748.00

Cashier's Initial

Authorised Signatory

Note -

Please quote the Policy Number, Collection Number and date in all future correspondence



REGD. OFFICE : # 218, Bommasandra, KIADB Industrial Area, 3rd Phase, Anekal Taluk, Bangalore - 560 099, INDIA.
Tel : +91 80 27835367 27835368 Fax : +91 80 27835147 E mail : smartstone@vsnl.net Website : www.smartstoneindia.net

REF NO: 405

KOLKATA : 16.01.2012

BILL OF EXCHANGE FOR USD 22191.07

At 90 Days, from the Date of Bill of Lading pay this FIRST Bill of Exchange (Second of the same tenor and date being unpaid) to the order of State Bank of India, N. S. Road Branch, Gillander House, Ground Floor, 8, N.S. Road, Kolkata - 700001, India, the sum of USD 22191.07 (U.S. Dollars Twenty Two Thousand One Hundred Ninety One and Seven Cents Only).

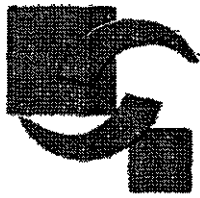
Value received against shipment of ONE container containing Random Polished Granite Slabs from Bangalore, India to Houston, United States of America as per our Invoice no.: SSPL/8154/2011-12 Dated 03.01.2012 for USD 22191.07 and Bill of Lading No. A712005108 dated 16.01.2012 of General Noli USA INC.

For Smartstone Private Limited

A handwritten signature in dark ink, appearing to read "R K Mittal", is written over a horizontal line.

(R K MITTAL)
C.E.O.

TO:
EXPO GRANITE MARBLE LLC,
1055, W SAM HOUSTON PARKWAY,
SUITE 100, HOUSTON,
TEXAS - 77043,
UNITED STATES OF AMERICA.



Smartstone

PVT. LTD.

REGD OFFICE #218, Bommasandra KIADB Industrial Area, 3rd Phase, Anekal Taluk, Bangalore - 560 099, INDIA.
Tel: +91 80 27835367, 27835368 Fax: +91 80 27835147 E-mail: smartstone@vsnl.net Website: www.smartstoneindia.net

REF NO: 405

KOLKATA : 16.01.2012

BILL OF EXCHANGE FOR USD 22191.07

At 90 Days, from the Date of Bill of Lading pay this **SECOND** Bill of Exchange (First of the same tenor and date being unpaid) to the order of State Bank of India, N. S. Road Branch, Gillander House, Ground Floor, 8, N.S. Road, Kolkata - 700001, India, the sum of USD 22191.07 (U.S. Dollars Twenty Two Thousand One Hundred Ninety One and Seven Cents Only).

Value received against shipment of ONE container containing Random Polished Granite Slabs from Bangalore, India to Houston, United States of America as per our Invoice no.: SSPL/8154/2011-12 Dated 03.01.2012 for USD 22191.07 and Bill of Lading No. A712005108 dated 16.01.2012 of General Noli USA INC.

For Smartstone Private Limited

(R K MITTAL)
C.E.O.

TO:
EXPO GRANITE MARBLE LLC,
1055, W SAM HOUSTON PARKWAY,
SUITE 100, HOUSTON,
TEXAS - 77043,
UNITED STATES OF AMERICA,



केन्द्रीय भण्डारण निगम
(भारत सरकार का उपक्रम)
Central Warehousing Corporation
(A Government of India Undertaking)



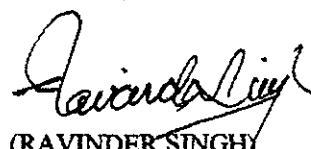
Regional Office : No. 9, Mission Road, Bangalore - 560 027

Phone : 080-22231803, 22222066, 22222231, 22233111 Fax : 080-22216885

E-mail : rmbfr.cwhc@nic.in website : www.cewacor.nic.in

Phone : +91 80 2335 7065 FAX : +91 80 2335 7065 Email : trgcell.cwhc@nic.in

RECOGNISED AS FUMIGATION AGENCY BY EXPORT INSPECTION COUNCIL OF INDIA & CERTIFIED
FUMIGATION OPERATOR BY DIRECTORATE OF PLANT PROTECTION QUARANTINE & STORAGE.
MINISTRY OF AGRICULTURE, GOVERNMENT OF INDIA

FUMIGATION CERTIFICATE			
DPPQS Registration No. 090021105		AFAS ID No. IN - 090 / 91TRPK095PM	
Certificate Number : 2082 / 2011 - 2012		Date of Issue 06.01.2012	
This is to certify that the following regulated articles have been fumigated according to the appropriate procedures to conform to the current phytosanitary requirements of the importing country : USA			
DETAILS OF GOODS			
Description of goods : RANDOM POLISHED GRANITE SLABS		Quantity declared : 07 WOODEN CRATES & 01 BOX	
Distinguishing Marks : INV # SSPL/8154/2011-12 DATED - 03.01.2012		Consignment / Container # MSKU - 395899 - 7	
Port of loading : INDIA		Name of the vessel / Ship : N/A	
Country of Destination : USA		Declared point of Entry : HOUSTON	
Name and address of Exporter		M/s. SMART STONE PVT LTD. 218, BAMMASANDRA, KIADB INDUSTRIAL AREA 3 RD PHASE ANEKAL TALUK BANGALORE-560 099.	
Declared name & address of consignee		AS PER INVOICE	
DETAILS OF TREATMENT			
Name of fumigant: MBr	Date of fumigation : 05.01.2011	Place of fumigation : BANGALORE	
Dosage: 48 gms/Cu Mtr	Duration of fumigation : 24 Hrs	Minimum air temperature : 21°C	
Container pressure test conducted.		X	X
Container has 200mm free air space at top of container.		YES	X
In transit fumigation - needs ventilation at port of discharge		X	NO
Container / Enclosure has been ventilated to below 5 ppm v/Methyl Bromide.		YES	X
WRAPPING AND TIMBER			
Has the commodity been fumigated prior to lacquering, varnishing, painting or wrapping?		X	X
Has plastic wrapping been used in the consignment?		X	NO
If yes, has the consignment been fumigated prior to wrapping?		X	X
Or has the plastic wrapping been slashed, opened or perforated in accordance with the wrapping and perforation standard?		X	X
Is the timber in this consignment less than 200 mm thick in one dimension and correctly spaced every 200 mm in height?		YES	X
ADDITIONAL DECLARATION			
Fumigated under gas proof enclosure.			
I declare that these details are true and correct and the fumigation has been carried out in accordance with the NSPM - 12 / ISPM - 15 / Australian Methyl Bromide Standard.			
 IN-090 MB			
Place: BANGALORE Date : 06.01.2012		 (RAVINDER SINGH) DPPQS Accreditation No. 090021105 AFAS ID No. 91TRPK095PM	

smartstone

From: "Shobha Meher, Exports" <tfpc.lhokol@sbi.co.in>
To: <smartstone@vsnl.net>
Sent: Wednesday, January 25, 2012 1:53 PM
Subject: 0505212RD0000040 / 05 Export Bill Registration (Non-LC) (Copy Existing Bill) / Cover Schedule-Disc-Usance

STATE BANK OF INDIA, KOLKATA L.H.O. TEL NO: +9133 22304531, 22318165
 TRADE FINANCE CPC, KOLKATA FAX NO: +913322304530
 SAMRIDDHI BHAVAN, BLOCK A SWIFT NO: SBININBB608
 7TH FLOOR No 1 STRAND ROAD PIN CODE: 700001

OUR REFERENCE : 0505212RD0000040

DATE: 25/01/2012

CHASE BANK, 546 WEST 19TH STREET,
 HOUSTON TX 77008, UNITED STATES
 OF AMERICA
 ATTN: AHMAD ELKHATIB
 Dear Sir,

PO NO. 01 FOR USD 22,191.07

Our Internal Reference No. 0505212RD0000040

WE FORWARD HERewith OUR EXPORT BILL FOR REALIZATION. THIS
 COLLECTION IS SUBJECT
 TO UNIFORM RULES FOR COLLECTION, 1995 REVISION ICC PUBLICATION NO.
 522. WE

ENCLOSE THE DOCUMENTS LISTED BELOW.

BILLS OF EXCHANGE 2
 BILL OF LADING 4
 COMMERCIAL INVOICE 3
 PACKING LIST 3
 INSURANCE 1
 CUMIGATION CERT. 2
 OTHERS

DRAWER : SMARTSTONE PVT.LTD
 DRAWEE : EXPO GRANITE MARBLE LLC
 TENOR : Usance Bill
 TENOR DAYS : 90 Days from Date of Shipment
 MATURITY DATE : 16-04/2012
 DRAFT AMOUNT : USD 22,191.07
 OUR CHARGES CLAIMED : USD

PLEASE ALWAYS QUOTE OUR REFERENCE NO 0505212RD0000040

SUBMITMENT INSTRUCTIONS:

PLEASE PAY BY MT 202 TO BKTRUS33 FOR FURTHER CREDIT TO SBININBB176.
 (ID-412919)

ACCOUNT NO- (0423377) SBI GLS MUMBAI QUOTING OUR SWIFT CODE
 SBININBB608 AND
 REF NO 0505212RD0000040.

Please acknowledge receipt. Present for acceptance immediately on
 receipt. DELIVER DOCUMENT AGAINST ACCEPTANCE. Advice/Cofirm Due Date.

Yours faithfully

Authorised signatory

PLEASE CONTACT BRANCH FOR eTradeSBI FACILITY-INTERNET ACCESS TO TRADE
FINANCE

--- Disclaimer --- The information in this mail is confidential and is intended solely for addressee. Access to this mail by anyone else is unauthorised. Copying or further distribution beyond the original recipient may be unlawful. Any opinion expressed in this mail is that of sender and does not necessarily reflect that of State Bank group. ---

JPMorganChase

JPMorgan Chase Bank, N.A.
Global Trade Services
131 South Dearborn, 5th Floor
Mail Code: IL1-0236
Chicago, IL 60603-5506

RETURN ADVICE
JUN 28, 2012
OUR REFERENCE NO.: ICIC-346653
YOUR REFERENCE NO.: 0505212RD0000040

TO:
STATE BANK OF INDIA
SAMRIDDI BHAVAN 1 STRAND ROAD
KOLKATA (CALCUTTA) 700001 INDIA

JPMORGAN CHASE BANK, N.A. RETURNS HERewith THE COLLECTION REFERENCED BELOW FOR THE REASONS NOTED.

COLLECTION AMOUNT : USD 22,191.07
COLLECTION OUTSTANDING BALANCE : USD 22,191.07

REASON FOR THE RETURN OF DOCUMENTS OR CLOSEOUT OF THE COLLECTION:
ACCEPTANCE AUTHORIZATION NOT PROVIDED BY 60 DAYS FROM THE DATE OF ADVISING.

ALL INQUIRIES REGARDING THIS TRANSACTION MAY BE DIRECTED TO OUR CLIENT SERVICE GROUP AT THE FOLLOWING TELEPHONE NUMBER OR E-MAIL ADDRESS:
1-800-634-1969 OR GTS.CLIENT.SERVICES@JPMCHASE.COM

THIS IS SUBJECT TO UNIFORM RULES FOR COLLECTION, 1995 REVISION, INTERNATIONAL CHAMBER OF COMMERCE PUBLICATION 522.

THIS IS A COMPUTER GENERATED INSTRUCTION WHICH DOES NOT REQUIRE A SIGNATURE.

EX 13925
RECEIVED
JUL -2 JUL 2012 11:58
1158
2012 JUL 2 11:58
2012 JUL 2 11:58

The Asstt General Manager
State Bank of India
N S Road Branch
Kolkata

State Bank Of India
Trade Finance CPC(5052) 7th Floor, "Samriddhi
Bhawan", 1 Strand Road Kolkata 700001
Tel: 033-22304531, 22310487/8165
FAX: 22304530 SWIFT: SBININBB608
E-mail: tfpcpc.lhokol@sbi.co.in

Dated 02/07/2012

No.AGM/TFPCPC/L/148/12-13

Dear Sir,

RETURN OF UNPAID DOCUMENTS
CUSTOMER:SMARTSTONE PVT.LTD.
DISCOUNTING BILL NO 0505212RD0000040

We forward herewith the above mentioned Export discount documents submitted by you for USD 22191.07, which was discounted by us on 25/01/2012 & proceeds were credited to customer a/c. As the payment was not received on due date i.e. 16/04/2012, the bill was crystallized by us on 04/05/2012, under intimation to you. Today we have received the unpaid bill from the foreign bank due to the reason specified by them in the forwarding letter (copy attached). We have closed the bill at our end. Please advise the customer accordingly. We have also reversed the entry from customer AD/OD a/c by dr. from customer C/C a/c. Please adjust at your end accordingly.

Yours faithfully



For Assistant General Manager

smartstone

From: "Kishore Babu Kotte - Savino Del Bene India Pvt. Ltd Bangalore"
<kishore.kotte@savinodelbene.com>
To: <smartstone@vsnl.net>
Sent: Tuesday, May 20, 2014 1:00 PM
Subject: PROOF OF DELIVERY FOR EXPORT SHIPMENT FROMBANGALORE TO HOUSTON
SHIPPER:SMART STONE C'NEE:EXPO GRANITE MARBLE

Hi,

I haven't recvd any message about this.

I see our brokerage div. (Jill) sent out the d/o to Expo's trucker Feb 28th 2012.

Thanks
John

Hi Kishore,

This shipment is so old that shipping line does not have the tracking on their website anymore but we are positive that this has been picked up; otherwise, this container would have been considered abandoned or went to G.O. warehouse. For either case, the shipping line would have notify us something.

John,
Please double check and let me know if you had been notified something about this container.

Best regards.

Wei

General Noli USA Inc.

Dear Wei Hu,

Whether c'nee taken delivery for the same or not confirm

Thanks & Regards

Kishore Babu.K

Air & Sea Export Operation
Savino Del Bene - Bangalore

#409 1st Floor, Sawera Apartment, 1st Stage, 3rd Block, HBR Layout,
Bangalore - 560043, India

Ph +91 80 43441000, Fax +91 80 43441004

E-mail: kishore.kotte@savinodelbene.com,

Web: www.savinodelbene.com



SAVINO DEL BENE

Dear Kishore,

We do not do delivery for this customer and they hired or used their own trucker to pick up their containers.

Best regards,

Wei

General Noli USA Inc.

Dear all,

Kindly note we have done one export shipment in 2012

Now shipper is asking for proof of Delivery

So kindly check and do the needful, details as below

REF NO	:Q20006
SHIPPER	:SMART STONE PVT LTD
C'NEE	:EXPO GRANITE MARBLE
HL NO	:A712005108
MBL NO	:MAEU863211443
CTNR NO	:MSKU3958997
POR	:BANGALORE
POL	:CHENNAI
POD	:HOUSTON,TX-USA
SHIPPINGINE	:MAERSK

Thanks & Regards

Kishore Babu.K

Air & Sea Export Operation

Savino Del Bene - Bangalore

#409 1st Floor, Sawera Apartment, 1st Stage, 3rd Block, HBR Layout,
Bangalore - 560043, India

Ph +91 80 43441000, Fax +91 80 43441004

E-mail; kishore.kotte@savinodelbene.com,

Web: www.savinodelbene.com



SAVINO DEL BENE



Please consider the environment before printing this e-mail

This message is for the recipients only. If you receive it in error, please notify the sender and delete it together with any attachments. For any further information, including our privacy policy please refer to <http://www.savinodelbene.com/privacy/>



IN REPLY TO: 11.01.2012
[K50935899/7]
Counter No: 100-1000
To: SAVINO DEL BENE,
BANGALORE, KENYA
From: SMARTSTONE LTD., BANGALORE
ATTENTION:
[K50935899/7]
[K50935899/7]

REGD OFFICE : # 218, Bommasandra, KIADB Industrial Area, 3rd Phase, Bangalore
Tel : +91 80 27835367, 27835368 Fax : +91 80 27835147 E-mail : smartstone@vsnl.net Website : www.smartstone.com

Date: 30th May 2014

To,
SAVINO DEL BENE FREIGHT FORWARDERS (INDIA) PVT. LTD.,
No.409, 1ST Floor, Savera Apartments,
5TH Cross, 1ST Stage,
3RD Block, HBR Layout,
Bangalore – 560043.
Tel No: +91 80 4344 1000
Fax No: +91 80 4344 1004

**SUBJECT: DELIVERY OF CNTR NO. MSKU 395899/7 SHIPPED UNDER BL NO A712005108 DATED
16.01.2012 OF GENERAL NOLI USA INC WITHOUT COLLECTING ORIGINAL BILL OF LADING**

Dear Sir,

We had dispatched one container containing 75 nos. Random Polished Granite Slabs against our invoice no SSPL/8154/2011-12 dated 03.01.2012 for USD 22191.07 to M/s Expo Granite and Marble LLC, 1055, W. Sam Houston Parkway, Suite 100, Houston, Texas 77043, United States of America through your company as you were nominated by the Buyer for this shipment with container number MSKU 395899/7 and you had issued Bill of lading no. A712005108 dated 16.01.2012 of General Noli USA Inc for this shipment.

We had negotiated all the original export documents through our Bankers State Bank of India. Our bankers had forwarded all the original shipping documents to the buyers bank in USA on 25.01.2012.

But all the original documents of the above container have been returned by the Buyers Bank to our Bank and in turn our Bank has returned the same back to us.

In spite of us receiving all the three original Bill of lading back from the bank we find that the container has already been delivered to the Buyer. It means that the container has been delivered to the buyer by you without collecting the Original Bill of Lading against a International Laws, Business norms & ethics.

Cont.... Page No. 2



Smartstone
PVT.LTD.

REGD. OFFICE : # 218, Bommasandra, KIADB Industrial Area, 3rd Phase, Anekal Taluk, Bangalore - 560 099. INDIA
Tel : +91 80 27835367, 27835368 Fax : +91 80 27835147 E-mail : smartstone@vsnl.net Website : www.smartstoneindia.net

We have not received payment of this invoice till date. Hence under the above circumstances you are liable to pay to us Invoice Value of USD 22191.07 along with Interest @ 14% per annum from due date of the bill i.e. 16.04.2012 till date of payment.

Please arrange payment of Invoice value USD 22191.07 along with interest 14% from due date of the Bill i.e. 16.04.2012 to as on date amounting to USD 6588.01 total USD 28779.08 to us at the earliest.

Thanking you,

Yours faithfully,

For Smartstone Pvt. Ltd.

(Aditya Mittal)

Director

**INDIA POST**

Ministry of Communications & Information Technology

India Post

Track Result for: **EK509355424IN**

Booked at	Booked On	Delivered at	Delivered on	Details
Bommasandra Industrial Estate S.O	02/06/2014	Fraser Town S.O	03/06/2014	

Detailed Track Events For **EK509355424IN**

Date	Time	Status at	Status
02/06/2014	13:33:05	Bommasandra Industrial Estate S.O	Item Booked
02/06/2014	15:37:15	Bommasandra Industrial Estate S.O	Item bagged for NSH BANGALORE
02/06/2014	16:15:52	Bommasandra Industrial Estate S.O	Bag Despatched to NSH BANGALORE
02/06/2014	18:40:13	NSH BANGALORE	Bag Received
02/06/2014	21:28:21	NSH BANGALORE	Bag Opened
02/06/2014	21:28:22	NSH BANGALORE	Item Received
03/06/2014	04:47:17	NSH BANGALORE	Item bagged for Fraser Town S.O
03/06/2014	05:28:15	NSH BANGALORE	Bag Despatched to Fraser Town S.O
03/06/2014	07:33:06	Fraser Town S.O	Bag Received
03/06/2014	07:43:12	Fraser Town S.O	Bag Opened
03/06/2014	07:43:12	Fraser Town S.O	Item Received
03/06/2014	18:38:00	Fraser Town S.O	Item Delivered

[Click here](#) and enter details to get contact informationNot satisfied ? [Click here](#) to register complaint

smartstone

From: "smartstone" <smartstone@vsnl.net>
 To: <dhilliswara.rao@savinodelbene.com>
 Sent: Friday, July 18, 2014 5:51 PM
 Attach: SAVINO NOTICE LETTER DT 30 05.2014 Page 02.jpg; SPEED POST TRACKING.jpg; 8154 BILL OF LADING.jpg; 8154 INVOICE.jpg; 8154 PACKING LIST PG 1.jpg; 8154 PACKING LIST PG 2.jpg; SAVINO NOTICE LETTER DT 30 05.2014 Page 01.jpg; SBI LETTER DATED 02.07 2012.jpg; JP MORGAN CHASE BANK.jpg; GENERAL NOLI USA INC DT 20 05.2014.eml
 Subject: DELIVERY OF CNTR NO. MSKU 395899/7 SHIPPED UNDER BL NO A712005108 DATED 16.01.2012 OF GENERAL NOLI USA INC WITHOUT COLLECTING ORIGINAL BILL OF LADING



TO,
 SAVINO DEL BENE FREIGHT FORWARDERS INDIA PVT. LTD,
 BANGALORE

KIND ATTN. MR DHILLISWARA RAO

SUB - DELIVERY OF CNTR NO MSKU 395899/7 SHIPPED UNDER BL NO A712005108 DATED 16.01.2012 OF GENERAL NOLI USA INC WITHOUT COLLECTING ORIGINAL BILL OF LADING

DEAR SIR,

KINDLY REFER THE TELEPHONIC CONVERSATION YOU HAD WITH OUR MR UDAL SINGH AND AS REQUIRED BY YOU PLEASE FIND ATTACHED HERewith FOLLOWING DOCUMENTS :-

- 1 INVOICE NO SSPL/8154/2011-12 DATED 03 01.2012 FOR USD 22191.07
- 2 PACKING LIST NO. SSPL/8154/2011-12 DATED 03 01 2012
- 3 BILL OF LADING NO A712005108 DATED 16 01 2012
4. OUR LETTER DATED 30 05.2014 ADDRESSED TO SAVINO DEL BENE FREIGHT FORWARDERS INDIA PVT LTD. BANGALORE
- 5 TRACKING REPORT OF SPEED POST DEPARTMENT AS PER WHICH OUR LETTER DATED 30 05 2014 WAS DELIVERED TO YOU ON 03 06 2014
6. RETURN ADVICE DATED 28 06 2012 OF JP MORGAN CHASE BANK N A
- 7 LETTER NO AGM/TFPCPC/L/148/12-13 DATED 02 07 2012 OF STATE BANK OF INDIA TRADE FINANCE CPC KOLKATA

PLEASE NOTE ALL THE ORIGINAL DOCUMENTS OF THE ABOVE CONTAINER WERE RETURNED BY BUYERS BANK TO OUR BANK & IN TURN OUR BANK HAS RETURNED THE SAME TO US.

IN SPITE OF OUR RECEIVING ALL THE THREE ORIGINAL BILL OF LADINGS BACK FROM THE BANK THE CONTAINER WAS DELIVERED TO THE BUYER WITHOUT COLLECTING ORIGINAL BILL OF LADING E-MAIL DATED 20 05 2014 FROM GENERAL NOLI USA INC TO KISHORE BABU SAVINO DEL BENE INDIA PVT LTD BANGALORE IS ALSO ATTACHED HERewith

WE HAVE NOT RECEIVED PAYMENT OF THIS INVOICE TILL DATE AS THE CONTAINER WAS DELIVERED WITHOUT COLLECTING THE ORIGINAL B/L. YOU ARE LIABLE TO PAY US INVOICE VALUE USD 22191 07 ALONG WITH INTEREST @ 14% PER ANNUM FROM DUE DATE OF THE BILL i.e 16.04 2012 TILL DATE OF PAYMENT

PLEASE TAKE APPROPRIATE NECESSARY ACTION IMMEDIATELY & ARRANGE PAYMENT TO US AT THE EARLIEST

THANKS & BEST REGARDS,
 FOR SMARTSTONE PVT. LTD

ADITYA MITTAL